KOR STRUCTURAL · 31206-01 LOT O OCEANFRONT SQUAMISH · PROFESSIONAL SERVICES AGREEMENT DATED 22 JULY 2026

Requested amendments

KOR Structural's requested changes to the Professional Services Agreement issued by Oceanfront Squamish Developments on 22 July 2026 (counsel's reference 113034.177516). Issued by KOR Structural, 28 October 2026.

Clause numbers refer to the agreement as issued. **Clauses not listed are accepted as issued.**

1 Preamble — name of the Owner

Replace "[Oceanfront Squamish ("Owner")" with:

> Oceanfront Squamish Developments Limited Partnership, by its general partner MSSH Oceanfront GP Inc. ("Owner")

2 1.15 — "Liabilities"

Delete. The term is used only in Section 9.1, which is replaced under item 9.

3 1.16 — "Owner Indemnified Parties"

Replace with:

> "Owner Indemnified Parties" means Owner and its officers, directors, employees, members, partners, and agents;

4 1.19 — "Project"

Replace with:

> "Project" means the Lot O development at Oceanfront Squamish, 37200–37400 Block of Innovation Avenue, Squamish, BC, comprising five three-storey rental apartment buildings over light industrial space, over one level of below-grade parking, together with a standalone daycare building, with a total gross buildable area of approximately 408,000 sq. ft., as shown on the Together Architecture Studio Inc. preliminary architectural drawings dated September 10, 2024;

5 5.1 — defined term

Replace "(the "Proposed Fees")" with "(the "Fees")", so that the defined term matches "Fees" as used in the rest of the Agreement.

6 4.1 — second sentence

Replace the second sentence ("Should the Consultant fail to meet such standard … other rights and remedies.") with:

> If the Consultant is not proceeding to diligently perform any of the Services in accordance with, and as required by, this Agreement and such failure continues following 30 days' prior written notice from Owner of such failure, Owner shall have the right to perform, or cause to be performed, any of such Services through its own forces or through third parties, and such failure shall constitute a default for the purposes of Section 14.1.1.

7 4.2 — permits and approvals

Replace "obtain all applicable permits, licences, exemptions, consents and approvals required for the Consultant to perform the Services" with:

> prepare, or cause to be prepared, the applications and submissions to Governmental Authorities set out in Schedule A (with the cooperation of Owner)

8 5.7 — withholding

Delete. Section 5.2 already allows Owner to withhold disputed amounts pending resolution of the dispute.

9 Section 9 — replace 9.1 with the following 9.1 to 9.3

9.1. Except in the case of fault, negligent acts or omissions, or breach of contract by the Owner Indemnified Parties or non-parties to this Agreement, the Consultant agrees to indemnify and save harmless the Owner Indemnified Parties from and against any and all Claims caused by:

(a) the Consultant's failure to remit the appropriate amounts and file timely, correct, and accurate income taxes, GST, HST, Employer Health Tax returns, and other required amounts and filings with the appropriate government authorities to the extent applicable;

(b) a breach of any term or condition of this Agreement by the Consultant; and

(c) negligence by the Consultant in the Consultant's work or the performance of the Services.

For the purpose of this Section 9.1, the Consultant shall be deemed to include its agents, representatives, employees, shareholders, officers and directors. Where the Consultant is a corporation or partnership, the Owner Indemnified Parties will limit any claim they may have to the corporation or partnership, without liability on the part of any officer, director, member, employee, or agent of such corporation or partnership, provided that where the Consultant is a partnership, notwithstanding anything to the contrary, there shall be no limitation of claims against any partners comprising the Consultant. To the fullest extent permitted by law, in no event shall either the Owner Indemnified Parties or the Consultant be liable to the other for any incidental, indirect, punitive, or consequential damages, including, but not limited to, loss of revenue or profits, cost of capital, loss of use or opportunity, or cost of substitute facilities, goods or services arising out of, resulting from, or in any way relating to the Project.

9.2. In no event shall the indemnification provisions of Section 9.1 diminish, affect, impede, or impair, in any manner whatsoever, the benefits to which Owner may be entitled under any insurance policy required by this Agreement or otherwise.

9.3. To the maximum extent permitted under applicable law, the cumulative liability of the Consultant arising out of or in any way connected to this Agreement shall be limited as follows:

(a) with respect to Claims for which insurance is to be provided, the insurance limits required pursuant to this Agreement;

(b) with respect to Claims for which insurance is not required and/or does not apply pursuant to this Agreement, the lesser of two times the Fees and $500,000; and

(c) the existence of one or more claims under this Agreement will not increase the Consultant's liability in excess of the foregoing.

10 10.1 — drafter's note

The issued agreement carries the note “[NTD: Subject to review by Matthews' insurance consultants…]” in Section 10.1. Please confirm that the requirements in 10.1 are final and remove the note.

11 10.3 — waiver of subrogation and additional insured

Replace with:

10.3. All insurance required by this Agreement to be obtained by the Consultant shall be placed with insurers registered in and licensed to underwrite such insurance in Canada. The Comprehensive General Liability Insurance required by Section 10.1.1 shall name Owner and, if requested, its affiliates and their directors, officers, employees and agents as additional insureds with respect to the Consultant's fulfilment of its obligations under this Agreement, and shall include a waiver of subrogation rights which the insurer might otherwise have against Owner, its directors, officers, employees or agents. The additional insured and waiver of subrogation requirements do not apply to the Professional Liability (Errors and Omissions) Insurance or the Automobile Liability Insurance.

12 12.1 — ownership

Replace with:

12.1. The Consultant reserves all right, title and interest in its work product, including, but not limited to, Consultant Background IP, the Services IP and all Intellectual Property created in the performance of this Agreement, including the Services and the Deliverables.

13 12.2 — licence to Owner

Replace with:

> 12.2. All Consultant Background IP shall remain the sole property of the Consultant. Owner shall have an irrevocable, royalty-free licence to use the Deliverables in perpetuity for the Project. The Consultant shall ensure that its agreements with any Subconsultants contain a similar provision in order to ensure that Owner has such licence. The Consultant represents, warrants and covenants that this licence does not infringe on the rights of any third party. The Consultant may rescind the licence only if Owner has failed to pay the Fees relating to the Deliverables when due. If the Consultant elects to rescind the licence it must first provide written notice to Owner. Notwithstanding anything to the contrary contained in this Section 12.2, if (a) there is an unsettled dispute regarding Owner's unpaid invoice for the Services as it relates to the Deliverables; or (b) Owner responds to the Consultant's notice to rescind the licence within 30 business days with a notification of dispute, then the Consultant's right to revoke the licence will be delayed until the dispute is definitively settled or ruled upon by a court of competent jurisdiction.

14 12.3 — infringement indemnity

Delete.

15 14.1.2 — termination for convenience

Replace “10 days” with “30 days”.

16 14.4 — payment on termination

Replace with:

> 14.4. In the event of termination under Section 14.1.2 or 14.2, Owner shall pay the Consultant for all Services completed up to the date of termination and, for Services in progress at the date of termination, compensation for the Consultant's reasonable time on such incomplete Services at the hourly rates set out in Schedule A.

17 Article 15 — Stand-Down Notice

Replace Article 15 (Sections 15.1 to 15.11) with:

> 15.1. Owner may direct the Consultant to suspend all or any portion of the Services by giving the Consultant written notice, which shall specify the estimated period during which the Services are to be suspended. The Consultant shall resume the Services upon the date specified in such notice, or upon such other date as Owner may thereafter specify. Suspension of the Services under this Section shall not give rise to any Claim against Owner or any other fees being due and payable by Owner to the Consultant, except that Owner shall be liable to the Consultant for: (a) Services completed prior to the date of such suspension; and (b) reasonable out-of-pocket costs incurred by the Consultant to recommence the Services. If the Services are suspended for a period of more than 60 days, the Consultant shall have the right to terminate this Agreement immediately upon written notice to Owner.
>
> 15.2. The Consultant shall comply with all Applicable Laws relating to occupational health and safety in the performance of the Services, shall cooperate with the health and safety programs, rules and standards instituted by Owner for the Project, and shall cooperate with Owner and any governmental authority in connection with any investigation or inquiry arising from a Safety Incident.

18 17.16 — Entire Agreement

Delete the last two sentences, beginning “If the Consultant refers to, submits or otherwise uses terms and conditions …” and “Owner is not liable for any claims or liabilities of any kind …”.

Notes for KOR (remove before sending). Items 1–5, 9, 12–14 and 18 are counsel's 26 October draft; items 7, 8, 11, 15, 16 are the executed Starlight wording; items 9 and 13 combine the two. Two items have no precedent and are KOR's choice, included on the assumption that KOR will not accept them as issued: **item 6** (4.1 re-perform at KOR's cost, replaced with the Starlight 30-day cure mechanism) and **item 17** (Article 15 stand-down, replaced with the Starlight suspension and health-and-safety clauses; as issued, 15.8 puts every cost including delay on KOR with no extension of time). Strike either to accept the clause as issued. The sentence "Clauses not listed are accepted as issued" is KOR's statement to make.